

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 826

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO THE HONEY INDUSTRY; AMENDING SECTION 22-2803, IDAHO CODE, TO DEFINE A TERM, TO REVISE A DEFINITION, AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 22-2804, IDAHO CODE, TO REVISE TERMINOLOGY, TO REMOVE A PROVISION REGARDING COMMISSION TERMS, AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 22-2807, IDAHO CODE, TO REMOVE A PROVISION REGARDING RULES; REPEALING SECTION 22-2808, IDAHO CODE, RELATING TO RULES, STANDARDS, AND DEFINITIONS; AMENDING SECTION 22-2809, IDAHO CODE, TO REMOVE A DATE REFERENCE, TO REVISE TERMINOLOGY, AND TO REMOVE A REFERENCE; AMENDING SECTION 22-2810, IDAHO CODE, TO REMOVE PROVISIONS REGARDING RULES, TO PROVIDE FOR THE UNITED STATES STANDARDS FOR GRADES OF EXTRACTED HONEY, TO PROVIDE FOR AUTHORITY OF THE DIRECTOR, AND TO CORRECT A CODE REFERENCE; REPEALING SECTION 22-2811, IDAHO CODE, RELATING TO PENALTIES FOR VIOLATIONS; AMENDING CHAPTER 28, TITLE 22, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 22-2811, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING PENALTIES FOR VIOLATIONS; AMENDING SECTION 22-2812, IDAHO CODE, TO REMOVE PROVISIONS REGARDING RULES; AMENDING SECTION 22-2813, IDAHO CODE, TO REVISE TERMINOLOGY AND TO MAKE A TECHNICAL CORRECTION; REPEALING SECTION 22-2815, IDAHO CODE, RELATING TO THE PUBLICATION OF REGISTERED BEEKEEPERS; PROVIDING THAT CERTAIN ADMINISTRATIVE RULES CONTAINED IN IDAPA 02.06.16 SHALL BE NULL, VOID, AND OF NO FORCE AND EFFECT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 22-2803, Idaho Code, be, and the same is hereby amended to read as follows:

22-2803. DEFINITIONS. Whenever used or referred to in this chapter, unless a different meaning clearly appears from the context:

(1) "Commission" means the Idaho honey commission.

(2) "Department" means the Idaho state department of agriculture.

(3) "Director" means the director of the department or the director's designated representative.

~~(2)~~ (4) "Honey producer" or "beekeeper" means a person, firm or corporation engaged in the art of raising, harboring, keeping or breeding domesticated honey bees either for the purpose of gathering honey or the production of queens and/or packaged bees.

~~(3)~~ (5) "Honey by-products" means items using honey as a base such as creamed honey, whipped honey, or the like.

~~(4)~~ (6) "Packer" means any honey producer or beekeeper or person who processes and packs honey for commercial retail sales.

~~(5)~~ (7) "Person" includes an individual, partnership, corporation, firm, association and agent.

1 ~~(6) "Director" means the director of the Idaho state department of~~
 2 ~~agriculture or his designated representative.~~

3 ~~(7)~~ (8) "Official sample" means a sample of honey taken by the director
 4 or an authorized agent in accordance with the provisions of section 22-2810,
 5 Idaho Code.

6 SECTION 2. That Section 22-2804, Idaho Code, be, and the same is hereby
 7 amended to read as follows:

8 22-2804. COMMISSION -- MEMBERS -- QUALIFICATIONS -- APPOINTMENT --
 9 COMPENSATION. (1) There is hereby created and established in the department
 10 ~~of agriculture~~ the Idaho honey commission to be known and designated as such,
 11 and shall be composed of the director of the department and three (3) members
 12 who shall be honey producers or beekeepers.

13 (2) Each member shall be a resident citizen of the state of Idaho for a
 14 period of five (5) years prior to his appointment, shall be a commercial bee-
 15 keeper as defined in section 22-2502, Idaho Code, actively engaged in honey
 16 production, registered as a beekeeper with the ~~Idaho department of agricul-~~
 17 ~~ture~~, and deriving a substantial portion of his income from honey produc-
 18 tion, or be the directing or managing head of a corporation, firm, partner-
 19 ship or other business unit that derives a substantial portion of its income
 20 from honey production. To continue as a member of the commission each member
 21 must remain qualified pursuant to the provisions of this section.

22 (3) The executive committee of the Idaho honey industry association may
 23 request the removal of a commissioner, with or without cause, by a majority
 24 vote. Upon receipt of such a request, the governor may immediately withdraw
 25 the commissioner's appointment.

26 (4) The Idaho honey industry association shall meet for the purpose of
 27 nominating members of the commission. The board of directors shall review
 28 the names of active beekeepers in Idaho that meet the qualifications as pro-
 29 vided in this section. By June 1 of each year, the names of two (2) honey pro-
 30 ducers or beekeepers nominated by the association for each vacancy occurring
 31 on the commission shall be submitted to the governor for his consideration.
 32 From such list of nominees, the governor shall designate and appoint one (1)
 33 member for each vacancy on the commission.

34 (5) Members shall serve for a term of three (3) years. Terms shall
 35 expire on the last day of June of the year in which the term for which the
 36 ~~members member~~ was appointed terminates. Provided however, each member
 37 shall serve until his respective successor is appointed and qualified. Ap-
 38 pointments to fill vacancies shall be for the balance of the unexpired term.
 39 ~~On and after the effective date of this act, terms that are currently vacant~~
 40 ~~or held by the commission members shall expire and be filled on the following~~
 41 ~~schedule: one (1) member term shall expire on June 30, 2015; one (1) member~~
 42 ~~term shall expire on June 30, 2016; and one (1) member term shall expire on~~
 43 ~~June 30, 2017.~~

44 (6) Commission members shall elect a chairman. The chairman may del-
 45 egate the function of the Idaho honey commission to an administrator whose
 46 function will be subject to the approval of the Idaho honey commission.

47 (7) A majority of the members of the commission shall constitute a quo-
 48 rum for the transaction of all business and the carrying out of the duties of
 49 the commission. Before entering on the discharge of their duties as members

1 of the commission, each member shall take and subscribe to the oath of office
2 prescribed by law.

3 (8) Each member of the commission shall be compensated as provided by
4 section 59-509(n), Idaho Code. The commission shall meet regularly once
5 each fiscal year at a date established by said commission in its designated
6 business office, and it shall fix the time and place of special meetings as
7 may be deemed necessary by the chairman of the commission.

8 SECTION 3. That Section 22-2807, Idaho Code, be, and the same is hereby
9 amended to read as follows:

10 22-2807. DUTIES. The commission shall ~~set honey quality, identity and~~
11 ~~labeling standards by rule,~~ plan and conduct a campaign for honey and honey
12 by-product advertising, publicity, merchandising, sales promotion and re-
13 search, including bee research, and public education of beekeeping and honey
14 production, by contracting with a service of the hereinabove mentioned, or
15 jointly with any university or other state agency or states of the United
16 States and its territories, or individually.

17 SECTION 4. That Section 22-2808, Idaho Code, be, and the same is hereby
18 repealed.

19 SECTION 5. That Section 22-2809, Idaho Code, be, and the same is hereby
20 amended to read as follows:

21 22-2809. LEVY AND COLLECTION OF TAXES -- CHANGE OF TAX BY REFERENDUM
22 -- VIOLATIONS -- PENALTY. (1) There is hereby levied and imposed upon each
23 colony or hive of bees within the state of Idaho on July 1 of each year a con-
24 tinuing annual tax of five cents (5¢) per hive or colony of bees ~~beginning in~~
25 ~~the year 1970~~ for the purpose of carrying out the provisions of this chapter.
26 Hobbyist beekeepers, as defined in chapter 25, title 22, Idaho Code, are ex-
27 empt from taxation under this section. Provided however, that any hobbyist
28 beekeeper who desires to support the efforts of the commission, as set forth
29 in section 22-2807, Idaho Code, ~~and desires to be included in registration~~
30 ~~lists distributed as authorized under section 22-2815, Idaho Code,~~ may reg-
31 ister with the commission for that purpose by remitting an annual registra-
32 tion fee of ten dollars (\$10.00).

33 (2) The tax may be decreased to not less than three cents (3¢) per hive
34 or colony per year or it may be increased to not more than ten cents (10¢) per
35 hive or colony per year, if approved by a majority of the beekeepers voting in
36 a referendum held for the purpose of determining whether such levy of the tax
37 shall or shall not be changed. If the levy of the tax is changed, the levy of
38 the tax will continue annually at the changed rate until again changed by an-
39 other referendum. Any resident of Idaho who is a registered Idaho beekeeper
40 with the department of ~~agriculture~~, and is not exempt from taxation as pro-
41 vided in subsection (1) of this section, may vote at such referendum. Any
42 referendum held for the purpose of changing the levy of such tax shall be held
43 at the annual meeting of the Idaho honey industry association or any succes-
44 sor organization to this group.

45 (3) Notice of the tax provided for in this section shall be mailed no
46 later than June 1 and the tax shall be due and payable on or before July 1 of

1 each year, and it shall be collected by the ~~Idaho~~ department of agriculture
 2 and shall forthwith be paid over by the ~~Idaho~~ department of agriculture to
 3 the Idaho honey fund.

4 (4) Said tax shall be a lien upon all apicultural products, equipment,
 5 bees and property of the person owning or controlling such bees and shall
 6 be prior to all other liens or encumbrances except liens which are declared
 7 prior by operation of the statutes of this state.

8 (5) Hives brought into the state for indoor winter storage prior to mov-
 9 ing to another state for pollination or honey production are exempt from pay-
 10 ing fees and taxes as provided for in this section. Provided however, reg-
 11 istration shall be required and a minimum of the following information shall
 12 be supplied: location of the storage, approximate dates the hive or hives
 13 will be brought into and leave the state, name, address and telephone num-
 14 ber of the owner of the bees, and name, address and telephone number of an
 15 in-state contact who will have knowledge of the hive or hives being stored in
 16 the state.

17 SECTION 6. That Section 22-2810, Idaho Code, be, and the same is hereby
 18 amended to read as follows:

19 22-2810. SAMPLING AND ANALYSIS. (1) For the purpose of enforcement of
 20 this chapter, and in order to determine whether its provisions have been com-
 21 plied with, including whether or not any operations may be subject to such
 22 provisions, officers or employees duly designated by the director ~~or com-~~
 23 ~~mission~~ upon presenting appropriate credentials, to the owner, operator, or
 24 agent in charge, are authorized upon written complaint:

25 (a) To enter, during normal business hours, any factory, warehouse, or
 26 establishment within the state in which honey is processed, packed, or
 27 held for distribution for retail sales, or to enter any vehicle being
 28 used to transport or hold such honey, and sample such honey that is pack-
 29 aged and labeled for retail sale.

30 (b) To inspect at reasonable times and within reasonable limits and in
 31 a reasonable manner, such factory, warehouse, establishment or vehicle
 32 and all pertinent equipment, finished and unfinished materials, con-
 33 tainers, and labeling therein, related to retail sales. The inspection
 34 may include the verification of only such records, and production and
 35 control procedures as may be necessary to determine compliance with the
 36 ~~good manufacturing practice rules established under the provisions of~~
 37 ~~this chapter~~ United States standards for grades of extracted honey.
 38 Each inspection shall be commenced and completed with reasonable
 39 promptness. Upon completion of the inspection, the person in charge of
 40 the facility or vehicle shall be so notified.

41 (2) Sampling and analysis shall be conducted in accordance with ~~methods~~
 42 ~~prescribed in rules, or in accordance with other generally recognized meth-~~
 43 ~~ods~~ the United States standards for grades of extracted honey.

44 (3) The director ~~or commission~~, in determining for administrative pur-
 45 poses whether a honey is adulterated, shall be guided by the official sample
 46 as defined in ~~subsection (7) of~~ section 22-2803, Idaho Code, and obtained and
 47 analyzed as provided for in this section.

48 (4) If the owner of any factory, warehouse, or establishment described
 49 in subsection (1) of this section, or authorized agent, refuses to admit the

1 director, ~~commission~~ or an authorized agent to inspect in accordance with
2 subsections (1) and (5) of this section, the director ~~or commission~~ is autho-
3 rized to obtain from any state court of competent jurisdiction a warrant di-
4 recting such owner or agent to submit the premises described in such warrant
5 to inspection.

6 (5) For the enforcement of this chapter, the director, ~~commission~~ or
7 a duly authorized agent is authorized to enter upon any public or private
8 premises including any vehicle of transport during regular business hours
9 to have access to, and to obtain samples, and to examine and make copies of
10 records relating to distribution of honey packaged and labeled for retail
11 sale to the public.

12 (6) The results of all analyses of official samples shall be forwarded
13 by the director ~~or commission~~ to the packer and to the purchaser or retailer.
14 When the inspection and analysis of an official sample indicate the honey has
15 been adulterated or mislabeled, and upon request by the packer or purchaser
16 or retailer within thirty (30) days following the receipt of the analysis,
17 the director ~~or commission~~ shall furnish to the packer or purchaser or re-
18 tailer a portion of the sample concerned.

19 SECTION 7. That Section [22-2811](#), Idaho Code, be, and the same is hereby
20 repealed.

21 SECTION 8. That Chapter 28, Title 22, Idaho Code, be, and the same is
22 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
23 ignated as Section 22-2811, Idaho Code, and to read as follows:

24 22-2811. PENALTIES FOR VIOLATIONS. (1) Any person that violates or
25 fails to comply with any of the provisions of this chapter may be assessed
26 a civil penalty by the department or its duly authorized agent of no more
27 than ten thousand dollars (\$10,000) for each offense and shall be liable for
28 reasonable attorney's fees.

29 (2) Assessment of a civil penalty may be made in conjunction with any
30 other department administrative action.

31 (3) No civil penalty may be assessed unless the person charged was given
32 notice and opportunity for a hearing pursuant to the Idaho administrative
33 procedure act.

34 (4) If the department is unable to collect such penalty or if any person
35 fails to pay all or a set portion of the civil penalty as determined by the
36 department, it may recover such amount by action in the appropriate district
37 court.

38 (5) Any person against which the department has assessed a civil
39 penalty under the provisions of this section may, within thirty (30) days of
40 the final action by the agency making the assessment, appeal the assessment
41 to the district court of the county in which the violation is alleged by the
42 department to have occurred.

43 (6) All civil penalties collected pursuant to this section shall be re-
44 mitted to the department.

45 SECTION 9. That Section 22-2812, Idaho Code, be, and the same is hereby
46 amended to read as follows:

22-2812. "STOP SALE, USE, OR REMOVAL" ORDERS. (1) In the event the department finds that honey is being offered for sale in violation of this chapter ~~or rules promulgated under this chapter~~, the department may issue and enforce a written or printed "stop sale, use, or removal" order to the distributor, owner or custodian of the honey and hold the honey, or order it held, at a designated place until the law has been complied with and the honey is released in writing by the department, or the violation has been otherwise legally disposed of by written authority. Unless the department grants a written extension, the owner or custodian of any honey that has been issued a "stop sale, use, or removal" order shall remedy the violation within thirty (30) days. The department shall release the honey so withdrawn when the requirements of this chapter have been complied with and all costs and expenses incurred in connection with the withdrawal have been paid.

(2) Any lot of honey not in compliance with the provisions of this chapter, ~~or rules promulgated under this chapter~~, shall be subject to seizure on complaint of the commission to a court of competent jurisdiction in the area in which said honey is located. In the event the court finds the said honey to be in violation of the provisions of this chapter and orders the condemnation of said honey, it shall be disposed of in any manner consistent with the quality of the honey and the laws of the state. Provided however, that in no instance shall the disposition of said honey be ordered by the court without first giving the claimant an opportunity to apply to the court for release of said honey or for permission to process or relabel said honey to bring it into compliance with the provisions of this chapter.

SECTION 10. That Section 22-2813, Idaho Code, be, and the same is hereby amended to read as follows:

22-2813. PAYMENT OF EXPENSES AND COSTS. All expenses and costs incurred in the administration of this chapter shall be paid out of the Idaho honey fund. The commission shall keep an accurate record of all costs and expenditures and will report the same by publication on October ~~1st~~ 1 of each year. All expenses and costs incurred and contracted for by the commission in performing its duties under this chapter shall be paid out of such Idaho honey fund in the following manner: vouchers shall be approved and submitted by the commission chairman to the director or his designated representative of the ~~Idaho state department of agriculture~~ for approval and subsequent issuance of a warrant by the state controller.

SECTION 11. That Section [22-2815](#), Idaho Code, be, and the same is hereby repealed.

SECTION 12. The rules contained in IDAPA 02.06.16, Department of Agriculture, relating to Idaho Honey Commission, Rules Governing Honey Standards, shall be null, void, and of no force and effect on and after July 1, 2026.

SECTION 13. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.